

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 22, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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https://www.scsccourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINES 1-4	24CV444939	Timed Out, LLC vs Liquid Restaurant and Lounge LLC	Motion to Compel Further Responses to Form Interrogatories (Line #1); Motion to Compel Further Responses to Special Interrogatories (Line #2); Motion to Compel Further Responses to Request for Production of Documents (Line #3); Motion for Admissions Deemed Admitted (Line #4); Sanctions Scroll down to Lines 1 - 4 for Tentative Ruling.
LINE 5	25CV459495	Ramsin Nigjeh et al vs FCA US LLC	Motion to Compel Initial Disclosures Under Code of Civil Procedure 871.26; Sanctions Scroll down to Line 5 for Tentative Ruling.
LINES 6-7	25CV460510	Anh Truong et al vs Jalen Fooster-Barrino et al	Motion to Compel Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, (Line #6); and Motion for Admissions Deemed Admitted (Line #7); Sanctions. Scroll down to Lines 6-7 for Tentative Ruling.
LINES 8-9	25CV466345	Christopher Wischmann et al vs George Aleuy et al	Motion to Compel Further Responses to Special Interrogatories (Line #8); and Motion to Compel Further Responses to Request for Production of Documents (Line #9); Sanctions Scroll down to Lines 8-9 for Tentative Ruling.
LINE 10	25CV468861	Raymond Harris vs Ford Motor Company et al	Judgment on the Pleadings Scroll down to Line 10 for Tentative Ruling.
LINE 11	25CV468879	Keenan O'Reilly vs Ford Motor Company et al	Petition to Compel Arbitration Scroll down to Line 11 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	22CV406413	Fabricio German Cota vs Robbie Matar	Motion to Withdraw as Attorney Parties to appear.
<u>LINE 2</u>	26CV495044	American Auto Financing vs Watsonville Auto Sales et al.	Hearing: Order of Examination Parties to appear.

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9:00 A.M.

Calendar Lines # 1-4

Case Name Timed Out, LLC vs Liquid Restaurant and Lounge LLC

Case No. 24CV444939

Motion to Compel Further Responses to Form Interrogatories (Line # 1); Motion to Compel Further Responses to Special Interrogatories (Line #2); Motion to Compel Further Responses to Request for Production of Documents (Line #3); Motion for Admissions Deemed Admitted (Line #4); Sanctions

Before the court is Plaintiff Timed Out, LLC's ("Timed Out") motion to compel responses to the following discovery: further responses to Form Interrogatories ("FROG"); further responses to Special Interrogatories ("SPROG"); further responses to Request for Production of Documents ("RFPD"), Set One; and Motion for Sanctions against Defendant Liquid Restaurant and Lounge LLC's ("Liquid Restaurant"). On December 22, 2025, Plaintiff Timed Out filed this motion to compel further responses to **216 total discovery responses** as follows: 13 FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); 134 SPROGs (Nos. 1-134); and 69 RFPDs (Nos. 1-69).

Plaintiff Timed Out also filed a motion to compel further responses to Request for Admissions ("RFA"), Nos. 1-83 that is set for hearing on August 13, 2026. In total, Plaintiff seeks to compel ***299 further discovery responses*** for FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); SPROG (Nos. 1-134); RFPD (Nos. 1-69), and RFA (Nos. 1-83), Set One.

The Court has reviewed the plaintiff's moving papers filed on December 22, 2025; defendant Liquid Restaurant's Oppositions filed on July 2, 2026; and the plaintiff's Reply to defenses' oppositions filed on July 9, 2026 and September 9, 2026; as well as the pleadings. Defense filed another opposition on September 9, 2026, stating that the motion was moot, but the moving party has not withdrawn the motion.

On July 16, 2026, the parties appeared and the Court orders the parties to meet-and-confer and submit a joint statement no later than September 14, 2026, identifying the remaining items in dispute and why further responses should or should not be compelled. Additionally, the Court discussed having the matter assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1, parties were to meet and confer about private mediation or Rule 4 mediation. The court expressly noted, "Failure to comply with this order will result in consideration of sanctions."

No joint statement was filed in compliance with the Court order.

The parties are ORDERED to appear and discuss why the matter should not be taken off calendar and sanctions should not be imposed.

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Calendar Line # 5
Case Name Ramsin Nigjeh et al vs FCA US LLC
Case No. 25CV459495
Motion to Compel Initial Disclosures Under Code of Civil Procedure 871.26; Sanctions <u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Ramsin Nigjeh (“Nigjeh”)’s July 9, 2022 purchase of 2022 Jeep Wrangler, vehicle identification number: 1C4JJXR69NW205757 (“Subject Vehicle”) that was manufactured and or distributed by Defendant FCA US LLC (“FCA”). (Complaint). On February 21, 2025, Plaintiff filed a Complaint alleging five causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; (5) negligent repair; (6) fraudulent inducement concealment. (<i>Id.</i>). Defendant FCA filed an Answer on May 12, 2025. Before the Court is Plaintiff Nigjeh’s motion to compel Defendant FCA to comply with Code of Civil Procedure section 871.26 by producing documents required under subdivisions (h)(6)-(10), (12), and (13), and sanctions. Plaintiff filed this motion on January 9, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on defense counsel on that same day. On September 9, 2026, Plaintiff filed an opposition brief. The Court has carefully reviewed the following: Plaintiff’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Brena Rucker in support of the motion and attached Exhibits 1- 7; proof of service (totaling 88 pages); Defendant’s Opposition (totaling 6 pages); Declaration of Adam River in support of defense Opposition (totaling 4 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 871.26, subdivision (h): The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): (6) Motor vehicle information reports, including build documentation, component information, and delivery details. (7) Entire warranty transaction history for the motor vehicle. (8) Listing of required field actions applicable to the motor vehicle. (9) Published technical service bulletins (“TSBs”) 1 for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle. (12) Warranty policies and procedure manuals. (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(Code of Civ. Proc., 871.26(h)(6)-(13)).

The legislative intent behind Code of Civil Procedure section 871.26 was to streamline civil procedure associated with claims brought under the Song-Beverly Act by enforcing early exchange of discovery, including depositions within 120 days after filing of the answer or other responsive pleadings. (*Id.*; California Bill Analysis, A.B. 1755 Assem., 8/30/2024).

III. ANALYSIS

Plaintiff Nigjeh moves for an order compelling Defendant FCA to comply with initial disclosures and provide documents under Code of Civil Procedure section 871.26 (h)(6)-(13) and monetary sanctions in the amount of \$2,500.00 against Defendant. (Plaintiff's Motion, p. 2).

Plaintiff asserts that Defendant was required to provide documents within 60 days after filings its answer. (*Id.*, p. 7). Specifically, Plaintiff seeks to compel production of six documents: "(1) Warranty Policies and Procedure Manual ("WPPM"); (2) Pre-Delivery Inspection ("PDI") records showing what defects FCA knew about the vehicle's condition at the time of sale; (3) the entire warranty transaction history with missing diagnostic trouble code ("DTC") results and software version information; (4) field action and recall documentation; (5) applicable technical service bulletins ("TSBs") and information service bulletins ("ISBs"); and (6) service manuals for systems the dealer diagnosed and repaired. (*Id.*, p. 6; Declaration of Rucker ("Rucker Decl.") ¶¶ 2-8; Exhibits 1-7). These documents are critical as it contains policies on repairs, warranty claim processing, comeback, s escalation procedure, internal quality control protocols, critical customer VIN designation criteria, report repair report type procedures, part return racking systems, dealership requirements for concern, cause, and correction documentation, labor operation codes for diagnostic procedures, technical narratives, pre-delivery inspection protocols, guidelines for warranty claim approvals and denials, warranty policies and procedures manual, motor vehicle information reports, entire warranty transaction history, applicable bulletins including for engine/powertrain effects and electrical/infotainment defects, and service manuals. (*Id.*, at p. 8-16; Rucker Decl. ¶¶ 2-8). Plaintiff cites that FCA has a pattern of withholding mandatory documents under section 871.26(h) and cites that refusal to purchase a vehicle without reviewing the repair and warranty history and other available documents constitute a willful violation. (*Id.*, citing *Kwan v. Mercedes-Benz of N. Am., Inc.*, (1994) 23 Cal. App. 4th 174, 186). Plaintiff asserts that FCA's failure to provide documents prevents Plaintiff from discovering admissible evidence finding FCA liable under the Song-Beverly Act and demonstrates willful disregard. (*Id.*, at p. 7).

In opposition, Defendant FCA counsel asserts that it has timely complied with initial disclosures under Code of Civil Procedure section 871.26 and provided over a thousand pages of documents including warranty repair records, warranty claim data, vehicle information reports, and technical service bulletins, recalls, sales documents, and related materials. (Opposition, p. 1; Rucker Decl. ¶¶ 9-10). Defendant FCA also emphasizes that it was Plaintiff who failed to comply with initial disclosures by serving initial production on July 21, 2025. (Opposition, p. 4). Defense served initial disclosure on June 19, 2025, over a month before the initial disclosure deadline, which was approximately July 12, 2025. (Rucker Decl. ¶¶ 8-9). FCA also sought a protective order to avoid risking improper dissemination of sensitive internal documents. (*Id.*, ¶¶ 11-12). Defense characterizes Plaintiff's motion as an attempt to obtain unlimited discovery, including confidential and proprietary business documents subject to a protective order. (*Id.*, p. 1-2). Section 871.26 does not require an expansive production of documents for speculative requests, including "all" internal databases, policies, STAR cases, engineering materials, and service literature that is not part of the actual repair history of the subject vehicle. Defense argues that Plaintiff failed to meet and confer prior to filing the instant motion and only sent letter weeks after filing the motion. (*Id.*, at p. 2; Rucker Decl. ¶ 13).

The Court finds that Defendant FCA has demonstrated efforts to substantially comply with initial disclosure under Code of Civil Procedure section 821.26. Defense produced over a thousand pages of documents a month before disclosure deadlines, which demonstrates an effort to comply. Further, defense filed a stipulated protective order to address potentially confidential and propriety information, which FCA asserts is one of the reasons certain documents were not released. The Court DENIES the motion to compel at this juncture. Parties are to meet and confer about further production of documents according to Code of Civil Procedure sections 2031.280 and 2031.310.

IV. SANCTIONS

Code of Civil Procedure section 871.26, subdivision (j), subsection (2) provides in relevant part:

Unless the party failing to comply with this section shows **good cause**, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court **shall** impose sanctions as follows:

- (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(Code of Civ. Proc., 871.26(j)(2))(emphasis added).

Here, Plaintiff seeks a total of \$2,500.00 in sanctions under Code of Civil Procedure section 871.26(j)(2) against Defendant FCA. (Plaintiff's Motion, p. 17). Plaintiff argues that Defendant's failure to comply with initial disclosures and produce documents under section 871.26(h) necessitates the imposition of sanctions. (*Id.*). Plaintiff disputes defense's assertion that the documents are publicly available and assert that FCA's bulletins and service manuals are on DealerCONNECT or its equivalent. (*Id.*).

In opposition, Defendant FCA asserts that sanctions are unwarranted as FCA has complied with section 871.26 and produced thousands of documents. (Opposition, p. 2). FCA acted asserts that at a minimum Defendant acted with substantial justification and in good faith in producing disclosures, while attempting to resolve confidentiality concerns through a stipulated protective order. (*Id.*, p. 2 and 4). Defense also argues that Plaintiff untimely served their initial production on. (*Id.*, p. 4). Thus, defense seeks a denial of sanctions or in the alternative a reduction in sanctions. (*Id.*).

The Court finds that Defendant has demonstrated good cause in complying with initial discovery set for in Code of Civil Procedure section 871.26. Defendant has demonstrated that it acted with substantial justification to produce relevant documents, while seeking a stipulated protective order regarding confidential and proprietary information. Thus, the motion for sanctions is DENIED.

V. CONCLUSION

Based on the foregoing, the Court DENIES the motion to compel and request for sanctions. The Court will prepare the formal Order.

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Calendar Lines # 6-7
Case Name Anh Truong et al vs Jalen Fooster-Barrino et al
Case No. 25CV460510
Motion to Compel Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, (Line #6); and Motion for Admissions Deemed Admitted (Line #7)
<u>I. BACKGROUND</u> This matter was continued from February 24, 2026, at that time, counsel for plaintiff, Clinton Keyworth and counsel for the defendant, Sean Moriarty appeared and informed the court that the parties reached an agreement. Mr. Keyworth withdrew his motion for monetary sanctions. No notice of settlement was filed. The motions were continued to March 19, 2026, where parties requested a second continuance to this date. <u>II. LEGAL ANALYSIS</u> Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (<i>Id.</i>, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See <i>Id.</i>, § 2030.290; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)). California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (<i>Pacific Tel. & Tel. Co. v. Superior Court</i> (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (<i>Id.</i> at 172; <i>see also</i>, <i>Pettie v. Superior Court</i> (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (<i>Pacific Tel. & Tel. Co.</i>, <i>supra</i>, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (<i>Norton v. Superior Court</i> (1994) 24 Cal.App.4th 1750, 1761). “As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (<i>Id.</i> at p. 541, citing <i>West Pico Furniture Co. v. Superior Court</i> (1961) 56 Cal.2d 407, 422). Code of Civil Procedure section 2031.010(d) allows a party to “demand that any other party allow the party making the demand, or someone acting on the demanding party’s behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.” Such a demand may be “without leave of court at any time that is 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first.” (Code Civ. Proc., § 2031.020(b)). “The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.040). If no

response is served, the party making the demand may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300(b)).

Under Code of Civil Procedure section 2023.010:

“If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: . . . (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).” Plaintiffs also assert that the Defendant has waived any objection to the requests based on its failure to respond. Code of Civil Procedure section 2031.300 and 2030.290.

III. ANALYSIS

On December 23, 2025, Plaintiffs Anh D. Truong and Kyle Victor Wong filed a Motion to Compel Defendant Jalen Fooster-Barrino’s Response to Interrogatories and Request for production of Documents; Motion for Admissions Deemed Admitted and Motions for Sanctions. Per Code of Civil Procedure section 1005(b) opposition papers were due on February 9, 2026. The defendant filed untimely opposition papers a day before the initial hearing on February 23.

On August 28, 2025, Plaintiff served initial written interrogatories, including Form Interrogatories, Special Interrogatories, Request for Production, and Request for Admissions, Set One on Defendant accompanied by proof of services via electronic service on the Defendant that same day. Code of Civil Procedure section 2030.260(a) provides that parties provide verified responses within 30 days after service of discovery. Responses were due on September 29, 2025, but parties agreed to three separate extensions at the request of Defendant. Per Plaintiff, as of December 23, 2025, Defendant failed to provide verified responses to the above written discovery.

In its opposition papers, the defense attorney represented that despite good faith efforts, he had been unable to contact the defendant and essentially lost contact. Three separate attorneys from the defendant’s law firm attempted to reach the defendant. The insurance carrier authorized a private investigator to make contact with the defendant. The defendant’s attached Exhibit C to its moving papers, which was a final draft of the defendant’s discovery, but lacked verification.

IV. CONCLUSION

Based on the foregoing, the motion to compel verified answers on initial written discovery FROG, SPROG, and RFPD, set one (Line #6) is GRANTED. Defendant is ORDERED to provide verified code-compliant responses within thirty (30) days of this hearing.

The motion for admissions to be deemed admitted (Line #7) is GRANTED.

The motion for sanctions has been withdrawn on February 24 by the moving party.

The Court will prepare the Order.

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Calendar Lines # 8-9
Case Name Christopher Wischmann et al vs George Aleuy et al
Case No. 25CV466345
Motion to Compel Further Responses to Special Interrogatories (Line #8); and Motion to Compel Further Responses to Request for Production of Documents (Line #9); Sanctions
I. <u>BACKGROUND</u> A. BRIEF FACTUAL SUMMARY This business tort claim stems from a Complaint filed in May 2025 by Plaintiffs Christopher Wischmann and Athena Global, LLC (collectively “Plaintiffs”) against Defendants George Aleuy, Robbie Aluey, and GEO Investment Properties, LLC (collectively “Defendants”). Plaintiffs filed its First Amended Complaint (“FAC”) in June 2025, alleging six causes of actions, including: (1) declaratory relief against Defendants; (2) violation of Corporation Code sections 17701.13 and 17704.10 against Defendant George Aleuy; (3) violation of Business and Profession Code section 17200 et seq., against all Defendants; (4) conversion against all Defendants; (5) accounting against Defendant George Aleuy; and (6) injunctive relief against all Defendants. Defendants filed an Answer to the FAC in August 2025 and filed a Cross-Complaint. Plaintiffs filed an Answer to the cross-complaint in September 2025. B. RELEVANT PROCEDURAL SUMMARY Before the Court is Plaintiffs motion to compel Defendant George Aleuy’s further responses to special interrogatories (“SPROG”), set one, No. 25 (Line # 8), and further response to request for production of documents (“RFPD”), set one, No. 27 (Line # 9), and sanctions. Plaintiff filed the motion on January 16, 2026, and the motions were accompanied by a proof of service indicating electronic mail to defense counsel on that same day. Defendants filed an opposition on September 9, 2026. Plaintiffs filed a reply brief on September 15, 2026. The Court has carefully reviewed the following: Plaintiffs’ notice of motion to compel SPROG, set one and memorandum of points and authorities (“MPA”) in support of motion to compel SPROG (totaling 8 pages); Declaration of James J. Huang and attached Exhibits A-C (totaling 58 pages); Declaration of Christopher Wischmann in support and attached Exhibits A-G (totaling 22 pages); separate statement in support of SPROG (totaling 4 pages); Plaintiffs’ notice of motion to compel RFPD, set one and memorandum of points and authorities (“MPA”) in support of motion to compel RFPD (totaling 8 pages); Declaration of James J. Huang and attached Exhibits A-C (totaling 58 pages); Declaration of Christopher Wischmann in support and attached Exhibits A-G (totaling 22 pages); separate statement in support of RFPD (totaling 4 pages); Defendants’ Opposition (totaling 10 pages); Declaration of Dennis Chin and attached Exhibits A-D in support of the Opposition (totaling 124 pages); Plaintiff’s reply brief (totaling 12 pages); proofs of services; and the pleadings. II. <u>LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288). Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (*Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 389).

A. PROCEDURAL REQUIREMENTS

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1)). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. MOTION TO COMPEL RESPONSES TO FURTHER FORM AND SPECIAL INTERROGATORIES

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within thirty (30) days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411).

Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

C. MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENT

Code of Civil Procedure section 2031.310(b)(1) sets forth that a motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1)). In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct.* (2002) 95 Cal. App.4th 92, 98).

III. ANALYSIS

Here, Plaintiff seeks further responses to two discovery requests, specifically, SPROG, No. 25 and RFPD, No. 27 from Defendant George Aleuy. Plaintiff seeks to compel responses regarding Defendant George Aleuy’s medical information in response to SPROG, No. 25 and RFPD, No. 27.

SPECIAL INTERROGATORY NO. 25:

State the name, address and telephone number and e-mail address of each and every individual who has provided you with medical care and/or treatment at any time from December 1, 2024, through the present.

RESPONSE TO SPECIAL INTERROGATORY NO. 25:

Responding Party objects that this interrogatory seeks highly confidential and private medical records protected by the right to privacy under the California Constitution, Article I, section 1, HIPAA, and applicable case law. Responding Party objects to this request is [sic] compound, oppressive, harassing, invasive, irrelevant, and not reasonably calculated to lead to the discovery of admissible evidence.

(Separate Statement, Plaintiffs’ motion to compel SPROG, p. 1-2).

REQUEST NO. 27:

If George Aleuy has been hospitalized at any time from January 1, 2025, and the present, each and every document, including but not limited to medical records, regarding or related to such hospitalization.

RESPONSE TO REQUEST NO. 27:

Responding Party objects that this request seeks highly confidential and private medical records protected by the right to privacy under the California Constitution, Article I, section 1, HIPAA, and applicable case law. Responding Party objects to this request is [sic] harassing, invasive, irrelevant, and not reasonably calculated to lead to the discovery of admissible evidence.

(Separate Statement, Plaintiffs’ motion to compel RFPD, p. 1-2).

First and foremost, the Court looks at the procedural requirements and finds that the motion was timely filed, within 45 days upon receipt of the responses. Parties met and conferred about the discovery at issue from November 17- December 29, 2025. (Declaration of Huang (“Huang Decl.”), ¶¶ 2-4; Exhibits A-C). The motions

were also accompanied by separate statements in compliance with Rules of Court, rule 3.1345. The Court will consider the merits of the motions.

Plaintiffs served Defendant George Aleuy with initial written discovery, including the discovery at issue on November 5, 2025. (Huang Decl., ¶; Exhibit B). Defendant George Aleuy served responses that the plaintiff asserts are meritless objections. (Plaintiffs' MPA, p. 3). Attorneys for the parties met-and-conferred regarding SPROG, No. 25 and RFPD, No. 27 on December 29, 2025. Plaintiffs assert that Defendant George Aleuy's medical setbacks and hospitalization from November 2024 through 2025 impaired his operational duties as the manager of CGRE LLC ("CGRE"). (*Id.*, p. 3-4; Complaint ¶¶ 13-15). Defendant George Aleuy's medical disability and resulting incapacity, prevented him from carrying out his duties as CGRE's managing member, which justifies Athena Global's expulsion of Defendant George Aleuy. (*Id.*, p. 5; Complaint ¶¶ 14-20). Between November 2024 through January 2025, Plaintiff Christopher Wischmann did not receive responses to substantive texts or emails regarding CGRE from Defendant George Aleuy. (Wischmann Decl., ¶¶ 7 and 11). Plaintiff learned about Defendant George Aleuy's medical condition, including gall bladder surgery, tracheotomy, and hospitalization in January 2025. (*Id.*, at ¶¶ 9-15). Plaintiff asserts that Defendant George Aleuy was entirely absent from managing CGRE properties through April 2025. (*Id.*, at ¶¶ 16-17). Defendant George Aleuy has been nonresponsive to Plaintiff's communication since December 9, 2024. (*Id.*, at ¶ 18). Thus, Plaintiffs seeks limited information to facts leading up to the expulsion and the declaratory relief actions plaintiffs pursued. (*Id.*). Plaintiffs also emphasizes, that the information directly refutes Defendant George Aleuy's claims that his expulsion were improper. (*Id.*, p. 5; Complaint ¶¶ 16, 18-20). Further, Plaintiff argues that Defendant George Aleuy's medical condition pertains to the relief he seeks in his cross complaint. (*Id.*, at p. 5).

In opposition, Defendant George Aleuy argues that the motion should be denied, as Plaintiffs' motion to compel further responses to SPROG, No. 25 and RFPD, No. 27 are irrelevant, private, harassment, invasive, and unreasonable. (Opposition, p. 1-2). Defense asserts that George Aleuy was not managing the properties of CGRE, but rather his son Robbie Aleuy was handling the operation duties as a manger of CGRE. Defense asserts that in its FAC, Plaintiff accepted responses to concerns that came from Robbie Aleuy. (Declaration of Chin ("Chin Decl."), ¶¶ 2-3). Defendant George Aleuy's medical condition has no bearing on CGRE's daily property operations, which were handled by GEO Investment Properties, LLC ("GEO") or on the validity of Plaintiff's attempted expulsion which turns on the Operating Agreements. (Opposition, at p. 3-5). Defendant asserts it has provided timely and complete responses to discovery. (*Id.*, at p. 6). Defendant also argues that George Aleuy's medical condition has no bearing on his request for reinstatement. (*Id.*, at p. 7). Defense also avails that the discovery is overbroad, not narrowly tailored e.g. fails to limit hospitalization, period of incapacity, subject matter, diagnosis, or connection any operational issues at CGRE, and the defendant is entitled to privacy protections. (*Id.*, at p. 8). Thus, Defendant seeks an order denying plaintiffs' motions to compel SPROG 25 and RFPD 27, deny Plaintiffs' request for sanctions, and impose sanctions in favor of the defendant in the amount of \$6,000.00. (Chin Decl., ¶¶ 7-9).

Plaintiffs' counsel rejects defense's arguments on relevancy and asserts that Defendant George Aleuy's medical issues, undergoing a tracheotomy and requiring respiratory assistance, from November 2024 through 2025 impacted his ability to communicate and is material and relevant. (Declaration of Wischmann ("Wischmann Decl."), ¶¶ 9-10, 12-15).

In response to defense's privacy objections, Plaintiffs emphasizes it offer to limit the medical information sought and a protective order to address Defendant George Aleuy's concerns. (Plaintiffs' MPA, p. 3 and 5; Huang Decl., ¶ 4). Plaintiff also asserts that Defendant George Aleuy places his medical condition at issue, per the relief he seeks, including reinstatement, in his cross complaint. (*Id.*, at p. 6). Plaintiffs also reject defense's HIPPA objection as meritless on the grounds that no party is subject to HIPPA as a covered entity. Plaintiffs seeks an order limiting the medical information to a one-year period. (*Id.*). Plaintiffs references efforts to accommodate Defendant George

Aleuy and seeks sanctions for his refusal to provide relevant medical information. (*Id.*, at p. 4). Plaintiffs avail that defense has no substantial justification in withholding Defendant George Aleuy's limited medical documents or information. (*Id.*, at p. 6). Defense asserts that a protective order does not cure George Aleuy's privacy rights against the request for overbroad medical information. (Opposition, at p. 9).

In reply, Plaintiffs asserts that defense refuses to produce any medical documentation or information that would either explain or confirm George Aleuy's absence from operational duties. (Reply, at p. 2). Plaintiffs emphasis that a legally incapacitated managing member cannot operate or make binding decisions. (*Id.*, at p. 1). Plaintiff asserts that serious operational issues arose in in late 2024 and Defendant George Aluey failed to provide responses to Plaintiff. (*Id.*, at p. 2). Defendant was hospitalized and unable to per form his "non-delegable obligations as CGRE's manager. (*Id.*,; FAC ¶¶15 and 17). Plaintiffs also avers that relevant evidence can pertain to the evidence of a witness or hearsay declarant in this matter given the cross complaint on the validity of expulsion and whether George Aluey is fit to serve as CGRE's managing member given the claim for reinstatement. (Reply, at p. 4-6). Plaintiffs assert that SPROG, No. 25 and RFPD, No. 27 are narrowly tailored and that a protective order may protect against disclosure of relevant sensitive information. (*Id.*, at p. 7-8). Based on defenses refusal to produce relevant discovery the Plaintiff reasserts its request for sanctions. (*Id.*, at p. 10).

Here, the Court finds that Plaintiffs have made a good cause showing that a disputed fact that is of consequence in the action and that SPROG No. 25 and RFPD No. 27 tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224). The discovery requests seek information to prove or disprove facts or lead to evidence that will prove or disprove facts relating to the claims asserted against Defendant George Aluey for accounting, injunctive relief, conversation, declaratory relief, and violations of Corporation Code sections 17701.13 and 17704.10 and Business and Profession Code section 17200 et seq. Further, it also relates to affirmative defenses against Defendant George Aluey's cross complaint. Accordingly, the Court will grant the motion to compel further responses to SPROG 25 and RFPD No. 27. However, the Court deems that further narrowing of the scope of information and time as noted in defense's objections to be apt, and narrows the further responses as follows:

SPECIAL INTERROGATORY NO. 25:

State the name-and address of medical providers who have provided medical care and/or treatment from December 1, 2024 to April 30, 2025 for surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

REQUEST NO. 27:

George Aluey's hospitalization records from December 1, 2024 to April 30, 2025 pertaining surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

Pursuant to California Code of Civil Procedure section 2030.030, a propounding party may bring a motion for monetary, issue, evidentiary, or terminating sanctions against any party that is engaging in misconduct in the discovery process. “Only two facts are absolutely prerequisite to imposition of a discovery sanction: (1) there must be a failure to comply, and (2) the failure must be willful [sic].” (*Valencia v. Mendoza* (2024) 103 Cal. App. 5th 427, 447, review denied (Oct. 16, 2024) (citing *Vallbona v. Springer* (1996) 43 Cal. App. 4th 1525, 1545 and *Karlsson v. Ford Motor Co.* (2006) 140 Cal. App. 4th 1202, 1214–15).

Plaintiffs’ counsel seeks Defendants seek a total of \$4,635.00 for *each* of the motions to compel based on nine hours of work on *each* motion preparing and filing the motions at an hourly rate of \$515.00. (Huang Decl. ¶ 5). In total, for the motions to compel SPROG and RFPD, Plaintiff’s counsel seeks \$9,270.00.

In opposition, defense argues that sanctions are unwarranted and Defendant George Aleuy’s objections were substantially justified based on privacy rights under the Constitution and based on a genuine good-faith dispute over the scope and relevancy of the information sought. (Opposition, p. 9). Defense asserts that Plaintiff fails to make a requisite showing of relevancy and disregards the Operating Agreement’s default and voting procedures. (*Id.*, at p. 9-10). Defense requests that Plaintiffs’ motion for sanctions be denied and seeks imposition of sanctions against the Plaintiffs for a total of \$6,000.00. (Chin Decl., ¶¶ 7-9). Defense counsel seeks 1.5 hours for reviewing Plaintiffs’ motion, 3.6 hours for legal research, 1.5 hours for review of CGRE Operating agreement, 4.0 for drafting opposition briefs, and anticipated 1.5 hours to appear for the motions. (*Id.*). Defense counsel seeks an hourly rate of \$500.00. (*Id.*).

Upon review, the Court finds that parties were engaged in a genuine discovery dispute, and defense had substantial justification to object to the discovery as propounded. Thus, the Court exercises its discretion and will not impose sanctions. Plaintiffs motion for sanctions is DENIED. Defendant’s motion for sanctions is DENIED.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel further responses to SPROG No.25 and RFPD No. 27 as modified below. Defendant is to provide verified code-compliant responses within thirty (30) days of this hearing.

SPECIAL INTERROGATORY NO. 25:

State the name-and address of medical providers who have provided medical care and/or treatment from December 1, 2024 to April 30, 2025 for surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

REQUEST NO. 27:

George Aleuy’s hospitalization records from December 1, 2024 to April 30, 2025 pertaining surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

Parties are to meet and confer about a protective order and submit a stipulated order.

Motion for sanctions requested by Plaintiffs is DENIED. Motion for sanctions requested by Defendant is DENIED. The Court will prepare the formal Order.

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Calendar Line # 10
Case Name Raymond Harris vs Ford Motor Company et al
Case No. 25CV468861
Judgment on the Pleadings Before the court is defendant Ford Motor Company’s motion for judgment on the pleadings. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> On or about May 21, 2022, plaintiff Raymond H. Harris (“Harris”) entered into a warranty contract with defendant Ford Motor Company (“Ford”) regarding a 2022 Ford Maverick vehicle, vehicle identification number 3FTTW8E36NRA62829 (“Subject Vehicle”) manufactured and/or distributed by defendant Ford. (Complaint, ¶¶7 – 8 and Exh. A). Defects and nonconformities to warranty manifested themselves within the applicable express warranty period including, but not limited to, engine defects, transmission defects, electrical defects, among other defects and non-conformities. (Complaint, ¶12). Plaintiff Harris alleges defendant Ford concealed a known defect from her. (Complaint, ¶52). The 2.5L engine and/or its related components installed in the Subject Vehicle suffer from one or more defects that can result in the loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine (“Engine Defect”). (Complaint, ¶53). Prior to sale of the Subject Vehicle, defendant Ford knew or should have known about the Engine Defect through its exclusive knowledge of non-public, internal data including pre-release test data, early consumer complaints to defendant Ford’s dealers, dealership repair orders, testing conducted in response to complaints, and other internal sources of information possessed exclusively by defendant Ford and its agents. (Complaint, ¶¶57, 59, 62, 63, 64, 65, 76). Nevertheless, defendant Ford and its agents actively concealed the Engine Defect and failed to disclose this defect to plaintiff at the time of his purchase of the Subject Vehicle or thereafter. (<i>Id.</i>). Defendant either refused to acknowledge the existence of the defects or performed superficial and ineffectual repairs that masked the symptoms of the Engine Defect. (Complaint, ¶¶59, 75, 77, 78). If plaintiff knew about these defects at the time of sale, plaintiff would not have purchased the Subject Vehicle. (Complaint, ¶60). On June 23, 2025, plaintiff Harris filed a complaint against defendant Palm Springs Ford (“PS Ford”) asserting causes of action for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2 [against defendant Ford] (2) Violation of Subdivision (b) of Civil Code Section 1793.2 [against defendant Ford] (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2 [against defendant Ford] (4) Breach of the Implied Warranty of Merchantability [against defendant Ford] (5) Negligent Repair [against defendant PS Ford] (6) Fraudulent Inducement – Concealment [against defendant Ford] On October 22, 2025, defendant Ford filed an answer to plaintiff Harris’s complaint. On November 6, 2025, defendant PS Ford filed an answer to plaintiff Harris’s complaint. On July 16, 2026, defendant Ford filed the motion now before the court, a motion for judgment on the pleadings directed at plaintiff Harris’s sixth cause of action for fraudulent inducement – concealment. <u>II. LEGAL STANDARD</u>

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40 (*Rattagan*)).

III. ANALYSIS

A. SPECIFICITY

In moving for judgment on the pleadings as to plaintiff Harris's sixth cause of action for fraudulent inducement-concealment, defendant Ford contends the complaint is defective in that plaintiff Harris has not pleaded the claim with the requisite specificity.

Though the particularity requirement generally mandates that a plaintiff plead facts establishing the aforementioned items, it is much more difficult to apply this rule in a case of non-disclosure because, as one court explained, "[h]ow does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?" (*Alfaro v. Community Housing Imp. System & Planning Ass'n., Inc.* (2009) 171 Cal.App.4th 1356, 1384). One of the purposes of the specificity requirement is to provide "notice to the defendant, to furnish the defendant with certain definite charged which can be intelligently met." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216, internal quotations omitted). However, when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy, even under strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party . . .". (*Id.*, at p. 217).

However, the *Rattagan* court declined to allow a more relaxed pleading standard for claims of concealment, explaining:

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. [Citations omitted]. For instance, in a case such as this, the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts, as [plaintiff] has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. "[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] . . . are insufficient for the foregoing purposes." [Citation.] (*Rattagan, supra*, (2024) 17 Cal.5th at pp. 43-44).

Defendant Ford argues plaintiff's complaint is lacking an allegation concerning the content of the omitted facts. The court does not agree. The complaint, at paragraphs 53 – 57, define an Engine Defect and specifically alleges defendant Ford failed to disclose this defect to plaintiff. In the court's view, these allegations sufficiently identify the content of the omitted facts.

B. DUTY TO DISCLOSE

Defendant Ford contends further that the sixth cause of action for fraudulent concealment is defective because plaintiff Harris has not pleaded any facts establishing defendant Ford had a duty to disclose. “The general rule for liability for nondisclosure is that even if material facts are known to one party and not the other, failure to disclose those facts is not actionable fraud unless there is some fiduciary or confidential relationship giving rise to a duty to disclose.” (*La Jolla Village Homeowners’ Assn. v. Superior Court* (1989) 212 Cal.App.3d 1131, 1151). To maintain a cause of action for fraud through nondisclosure or concealment of facts, a plaintiff must demonstrate that the defendant was under a legal duty to disclose those facts. (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 845). “Where . . . there is no fiduciary relationship, the duty to disclose generally presupposes a relationship grounded in some sort of transaction between the parties. Thus, a duty to disclose may arise from the relationship between seller and buyer . . . or parties entering into any kind of contractual agreement.” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337, internal citations omitted). In *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311-312 (*Bigler*) the court wrote:

Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a “transaction” between the plaintiff and the defendant: “In *transactions* which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.” (*Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294 [85 Cal. Rptr. 444, 466 P.2d 996], italics added, fns. omitted). Other cases have described the requisite relationship with the same term. (See, e.g., *Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4th 1178, 1187 [175 Cal. Rptr. 3d 820] (*Hoffman*); *LiMandri, supra*, 52 Cal.App.4th at p. 337 [“As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties.”]). ***Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.*** (Emphasis added).

Defendant Ford contends there is no direct relationship alleged between it and plaintiff Harris because plaintiff Harris does not allege he purchased the Subject Vehicle directly from Ford. However, earlier in *Bigler*, the court cites with approval the following: “A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as “seller and buyer, employer and prospective employee, doctor and patient, ***or parties entering into any kind of contractual arrangement.***”” [Citation.]” (*Bigler, supra*, 7 Cal.App.5th at p. 311; emphasis added). Here, although plaintiff Harris does not allege he directly purchased the Subject Vehicle from defendant Ford, plaintiff Harris has alleged the existence of a contractual agreement (express written warranty) with defendant Ford and thus, a basis upon which a duty to disclose arises. (See Complaint, ¶¶7 – 8 and Exh. A).

C. DAMAGES

Defendant Ford contends plaintiff Harris has not sufficiently alleged that he suffered any damage as a result of the alleged fraud. Defendant Ford acknowledges paragraph 60 of the complaint where plaintiff Harris alleges that had he known about the defects at the time of sale, “Plaintiff would not have purchased the Subject Vehicle.” This is a sufficient statement of a monetary damage that plaintiff suffered as a result of the alleged fraud. Although specificity is required in pleading fraud, the amount of such damage (purchase price) is reasonably inferred.

D. ECONOMIC LOSS

Finally, defendant Ford contends the claim for fraudulent concealment is barred by the economic loss rule. The economic loss rule provides that “where a purchaser’s expectations in a sale are frustrated because the product he

brought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses.” (*Robinson Helicopter Company v. Dana Corporation* (2004) 34 Cal.4th 979, 988 (*Robinson*)). This doctrine hinges on a “distinction drawn between transactions involving the sales of goods for commercial purposes where economic expectations are protected by commercial and contract law, and those involving the sale of defective products to individual consumers who are injured in a manner which has traditionally been remedied by resort to the law of torts.” (*Ibid.*). The rule requires a purchaser to recover solely in contract for purely economic loss due to disappointed expectations, unless the purchaser can demonstrate harm above and beyond a broken contractual promise. (*Ibid.*).

Insofar as plaintiff Harris has asserted fraudulent concealment inducing his purchase of the Subject Vehicle, plaintiff’s sixth cause of action is not barred by the economic loss rule. (See *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 923-924—“Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. But such claims are barred when they arise from—or are not independent of—the parties’ underlying contracts). (See *Robinson, supra*, 34 Cal.4th at p. 991 [holding that “the economic loss rule does not bar [the plaintiff’s] fraud and intentional misrepresentation claims because they were independent of [the defendant’s] breach of contract”]). *Rattagan* did not address application of the economic loss rule to claims of fraudulent inducement by concealment. (See *Rattagan, supra*, 17 Cal.5th at p. 41, fn. 12—“This court has granted review¹ in two other cases—*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 [300 Cal. Rptr. 3d 715], review granted February 1, 2023, S277568 and *Kia America v. Superior Court* (Feb. 3, 2022, D079858) (nonpub. opn.), review granted April 20, 2022, S273170—both of which involve claims of fraudulent inducement by concealment claims as well as the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1791 et seq.). We do not address these issues here.”). The California Supreme Court has saved that discussion for another day.

The court declines to follow the federal trial court decisions relied upon by defendant Ford. While instructive and perhaps even persuasive, “A written trial court ruling has no precedential value.” (*Santa Ana Hospital Med. Ctr. v. Belshe* (1997) 56 Cal.App.4th 819, 831; *Budrow v. Dave & Buster’s of California* (2009) 171 Cal.App.4th 875, 885; *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761; *In re Molz* (2015) 127 Cal.App.4th 836, 845).

IV. CONCLUSION

Based on the foregoing, Defendant Ford’s motion for judgment on the pleadings is DENIED. The Court will prepare the formal Order.

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¹ Review of these two decisions has since been dismissed. (*Dhital v. Nissan North America, Inc.* (2024) 327 Cal.Rptr.3d 898 [559 P.3d 1083]; *KIA America, Inc. v. Superior Court* (Dec. 18, 2024, No. S273170) ___ Cal.5th ___ [2024 Cal. LEXIS 7098]).

Calendar Line # 11
Case Name Keenan O'Reilly vs Ford Motor Company et al
Case No. 25CV468879
Petition to Compel Arbitration I. <u>BACKGROUND</u> Plaintiff Keenan O'Reilly purchased a 2021 Ford Bronco Sport, vehicle identification number: 3FMCR9B68MRA75409 ("Subject Vehicle") in April 2021 from Knight Sunrise Hollywood LLC dba Sunshine Ford of North Hollywood (Dealership). (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (<i>Id.</i> at ¶ 47). Plaintiff alleges that Dealership "breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (<i>Id.</i> at ¶ 49). Plaintiff sued Dealership and Ford Motor Company in June 2025. The sole cause of action alleged against Dealership is for negligent repair. At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract ("RISC") signed by Plaintiff and Dealership when the Subject Vehicle was purchased. II. <u>LEGAL STANDARD</u> Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at p. 6:25-7:1). The arbitration provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.). and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex. A at p. 5). Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (<i>Davis v. Nordstrom, Inc.</i> (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; <i>Ingle v. Circuit City Stores, Inc.</i> (9th Cir. 2003) 328 F.3d 1165, 1170). Code of Civil Procedure section 1281.2 provides: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement." In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (<i>Iyere</i>); <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (<i>Iyere, supra</i>, 87 Cal.App.5th at p. 755). III. <u>ANALYSIS</u> A. A VALID AGREEMENT TO ARBITRATION EXISTS The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 7). Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: **“Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 7 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.*, Ex. A at p. 1). The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: **“YOU ACKNOWLEDGE THAT YOU HAVE READ ALL PAGES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 7 OF THIS CONTRACT, BEFORE SIGNING BELOW.”** (*Id.*, Ex. A at p. 6). Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ”]).

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:19-4:11). In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166). Dealership has shown a valid agreement to arbitrate.

B. THE SCOPE OF THE ARBITRATION AGREEMENT COVERS PLAINTIFF’S CLAIMS

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise. . . , between you and us. . . , which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A at p. 7). Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:8-10). That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126). By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the

arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff's claims.

The court does not reach Dealership's arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership's arguments on those points.

C. THIS ACTION IS STAYED IN ITS ENTIRETY

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues "[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective." (Reply at p. 8:24-26). Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

IV. CONCLUSION

Based on the foregoing, the petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The Court will prepare the formal order.